

Mutual Non-Disclosure Agreement (NDA)

This Agreement is entered into on [Date] between:

Party 1: [Your Name / Business Name], of [Address] ("Consultant")

Party 2: [Client Name / Company], of [Address] ("Client")

This is a structured starting point covering commonly-included NDA clauses — not legal advice. Have a lawyer review before use, and adapt to your jurisdiction. NDA enforceability rules vary by location.

1. Purpose

The parties wish to discuss a potential or ongoing business relationship regarding [brief description, e.g., "a consulting engagement to redesign Client's onboarding process"] (the "Purpose"), during which each party may disclose confidential information to the other.

2. Definition of Confidential Information

"Confidential Information" means any non-public business, technical, financial, or strategic information disclosed by either party, whether in writing, verbally, or by any other means, that is designated as confidential or that a reasonable person would understand to be confidential given its nature and the circumstances of disclosure.

3. Exclusions

Confidential Information does not include information that:

- was already known to the receiving party before disclosure, without an obligation of confidentiality;
- is or becomes publicly available through no fault of the receiving party;
- is independently developed by the receiving party without use of the disclosing party's Confidential Information; or
- is rightfully received from a third party without restriction.

4. Obligations

Each party agrees to:

- use the other party's Confidential Information solely for the Purpose;
- protect it with at least the same degree of care it uses for its own confidential information, and no less than reasonable care;
- not disclose it to any third party without prior written consent, except to employees or contractors who need to know it for the Purpose and are bound by similar confidentiality obligations.

5. Term

This Agreement's confidentiality obligations remain in effect for **[1–3]** years from the date of each disclosure, or until the information no longer qualifies as confidential under Section 3, whichever comes first.

6. Return or Destruction of Information

Upon written request, or if the parties decide not to proceed with the Purpose, each party will return or destroy the other's Confidential Information (excluding archival copies retained for legal or compliance purposes), and confirm this in writing if requested.

7. No License or Obligation to Proceed

Nothing in this Agreement grants either party any license or ownership rights in the other's Confidential Information, and nothing obligates either party to enter into any further business relationship.

8. Remedies

Each party acknowledges that unauthorized use or disclosure of Confidential Information may cause harm not fully compensable by monetary damages, and that the disclosing party may seek injunctive relief in addition to any other available remedy.

9. Governing Law

This Agreement is governed by the laws of [State/Country], without regard to conflict-of-law principles.

10. Entire Agreement

This Agreement constitutes the entire understanding between the parties regarding confidentiality of the Purpose and supersedes any prior discussions or agreements on that subject.

Signed:

Party 1 ([Your Name]): _____ Date: _____

Party 2 ([Client Name]): _____ Date: _____

Reminder: this NDA template is a starting point reflecting common practice, not legal advice. It does not replace the confidentiality clause in your Service Agreement, which governs the engagement itself once signed.

Consultant Client Ops — consultant-client-ops.netlify.app — provided as a starting-point document, not legal advice.